CONFIDENTIALITY UNDERTAKING

Synthetic test document. Fictional parties. No legal effect.

4. CONFIDENTIALITY

4.1 Obligation. Each Party shall keep the other Party's Confidential Information strictly confidential and shall not disclose it to any third party without prior written consent.

4.2 Exceptions. Clause 4.1 does not apply to information that is or becomes public other than through breach of this Agreement or that is required to be disclosed by law.

5. LIABILITY

5.1 Limitation. Neither Party's aggregate liability under this Agreement shall exceed the total fees paid in the twelve (12) months preceding the event giving rise to the claim.

5.2 Exclusions. Nothing in this Agreement limits liability for fraud, wilful misconduct, or any liability that cannot be excluded by law.

DRAFT - NOT FOR EXECUTION

CONFIDENTIALITY UNDERTAKING (CONTINUED)

Synthetic test document. Fictional parties. No legal effect.

6. GENERAL

6.1 Governing Law. This Agreement is governed by the laws of the Republic of Examplestan, and the courts of its capital city have exclusive jurisdiction.

6.2 Entire Agreement. This Agreement constitutes the entire agreement between the Parties and supersedes all prior negotiations, representations and understandings.